

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Objection Case No.41-2020

Mst. Sughran Bibi

Versus

Ghulam Muhammad etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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24.09.2020 Mr. Tahir Mehmood, Advocate for the petitioner.

Office has raised two objections. Objection at Serial No.10, requires the entries of the opening sheet to be typed. The perusal of opening sheet shows that only in the columns of value for purpose of jurisdiction and value for purpose of court fee "Nil" has been written by pen while other entries are typed, therefore, the said office objection is overruled. As regard objection No. 26 about maintainability of Civil Revision against interim order is concerned, the Office is directed to number the Civil Revision and fix the same for hearing on judicial side for today, where the said objection shall be taken care of.

MAIN CASE/C.R.No. 823 of 2020

2. Through this Civil Revision, the petitioner has challenged the order dated 08.09.2020 passed by learned Additional District Judge on application under section 12(2) CPC filed by the petitioner, which is as under:-

"08.09.2020

Present:

Learned counsel for the petitioner Ch.
Muhammad Shahid Iqbal, Advocate.

This is fresh petition U/S 12(2) CPC. Be registered.

2. Let notices to the respondents be issued for 12.09.2020 subject to deposit of usual costs and registered envelope AD within three days.

Announced:
08.09.2020.

(Mirza Aurang Zeb Khan)
Addl. District Judge, Khanewal."

3. The perusal of afore referred order shows that the said order is an interlocutory order, whereby notices to the respondents were issued on petitioner's application under Section 12 (2) C.P.C and nothing has been finally decided, which can be called in question by filing Civil Revision before this Court.

4. Learned counsel for the petitioner when confronted of the afore-referred situation, states that the application for interim relief filed by the petitioner alongwith the application under Section 12(2) CPC has not been entertained or adverted to by the learned trial Court which amounts to declining the interim relief as prayed for, consequently, this revision petition is maintainable.

5. I am not inclined to agree with the aforesaid ground raised by the petitioner for the reason that impugned order does not show that application for interim relief was taken up for hearing before the learned Additional District Judge, who has taken cognizance of the application under Section 12(2) CPC. The petitioner was required to show that the application had been taken up for hearing and after applying application of mind the learned Addl. District Judge had either refused the relief or deliberately avoided to pass any order on the same amounting to refusal of interim relief, which has not been done, therefore, the aforesaid order passed by learned Additional District Judge, cannot be taken to have declined the interim relief prayed for by the petitioner before the said court. Actually the said court has not decided anything, which was challengeable before this Court in its revisional jurisdiction as revisional jurisdiction cannot be exercised unless matter raised through revision petition arising out of order passed by the courts below amounts to a case decided by the court against which revision petition has been filed. Reliance in this regard is placed on PLD 2018 Lah 491 (Abdul

Razzaq and others v. Muhammad Ajmal Khan), 2006 SCMR
21 (*NESTLE Milkpak Ltd. v. Classic Needs Pakistan (Pvt.)*
Ltd. and 3 others) and 1994 SCMR 1991 (*Mian*
Muhammad Luqman and 5 others v. Farida Khanam and
another). For what has been discussed above, this revision
petition is premature and not maintainable, however, the
same is **disposed of** with observation that the petitioner,
in the first instance, may raise the matter of pendency of
the aforesaid application before the learned Additional
District Judge.

(MUZAMIL AKHTAR SHABIR)
Judge

Malik Iftikhar

Approved for reporting.